

Moved by Nichols

Seconded by Den Hartog

IN THE SENATE
SENATE AMENDMENT TO S.B. NO. 1299

AMENDMENT TO SECTION 1

On page 1 of the printed bill, delete lines 31 through 33; and delete lines 39 through 41.

On page 2, delete lines 1 through 13, and insert:

"(5) (a) The attorney general shall have the authority to enforce the provisions of this section. Before filing an action for injunctive relief, the attorney general shall provide written notice of the alleged violation and allow the public entity fifteen (15) days to cure the violation.

(b) If the violation is not cured within fifteen (15) days, the attorney general may bring an action in district court to enjoin the public entity from violating the provisions of this section.

(6) Any person aggrieved by a violation of this section may bring an action in district court for declaratory or injunctive relief.

(7) A court issuing an order pursuant to this section may enforce such order through the court's contempt authority as provided by law.

(8) A prevailing plaintiff in an action brought pursuant to this section shall be entitled to reasonable attorney's fees and costs.

(9) No public employee shall be personally liable for actions taken within the employee's scope of employment."